

HOUSE No. 3968

The Commonwealth of Massachusetts

PRESENTED BY:

William F. MacGregor

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to a tax exemption for seniors and a person with a disability.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>William F. MacGregor</i>	<i>10th Suffolk</i>	<i>1/14/2025</i>

HOUSE No. 3968

By Representative MacGregor of Boston, a petition (accompanied by bill, House, No. 3968) of William F. MacGregor relative to property tax exemptions for seniors and persons with disabilities. Revenue.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to a tax exemption for seniors and a person with a disability.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Clause Fifty-second of section 5 of chapter 59 of the General Laws is
2 hereby amended by adding the following subsection:-

3 (d) After the assessors have allowed an exemption pursuant to this clause, no further
4 evidence of the existence of the facts required by this clause shall be required in any subsequent
5 year in the city or town in which the exemption has been allowed; provided, however, that the
6 assessors may refuse to allow an exemption in any subsequent year if they become aware that the
7 elderly homeowner did not satisfy all of the criteria described in subsection (c) and did not have
8 a disability as determined by MassAbility at the time the exemption was first granted.

9 SECTION 2. Said section 5 of said chapter 59 of the General Laws is hereby further
10 amended by adding the following clause:-

11 Fifty-nine. (a) Notwithstanding any other provision of this section, any homeowner, who
12 is elderly and has a disability as determined by MassAbility, shall receive an abatement of an

amount equal to the difference between any increase in property taxes attributable to the provisions of paragraph (n) of section twenty-one C and the amount by which the applicant's water and sewer bill would be higher if the amount of said increase in property taxes were recovered in water and sewer charges, which difference shall be calculated by the board or officer responsible for fixing water and sewer charges, and certified to the board of assessors; provided, however, that said abatement shall not be greater than \$200.

(b) The commonwealth shall annually appropriate the amount necessary fully to reimburse cities and towns for taxes abated under this clause. Subject to said appropriation, the commissioner of revenue shall distribute to each city and town its full reimbursement amount based on the number and amount of such abatements granted.

(c) After the assessors have allowed an exemption pursuant to this clause, no further evidence of the existence of the facts required by this clause shall be required in any subsequent year in the city or town in which the exemption has been allowed; provided, however, that the assessors may refuse to allow an exemption in any subsequent year if they become aware that the homeowner is not elderly and did not have a disability as determined by MassAbility at the time the exemption was first granted.